

Support of Defendants' Motion for Judgment on the Pleadings as to Plaintiff's First and Second Causes of Action (Tecson Dec.), filed April 7, 2026.

The basis for a motion for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts which a court may judicially notice. (Code of Civil Procedure (CCP) Section 438.) A court may consider a party's admission which cannot be reasonably controverted, even if it negates an express allegation of the pleading. (*Pang v. Beverly Hospital Inc.* (2009) 79 Cal.App. 4th 968, 989.)

Plaintiff alleges she was injured during her tenancy at Defendants' property. Her complaint alleges three causes of action: (1) General negligence; (2) Premises Liability; and (3) Retaliatory Evidence.

On February 4, 2026, the Court granted Defendant's motion for an order deeming Defendant's Requests for Admissions (RFA), Set One, admitted, and awarding Defendant sanctions to be paid by Plaintiff. The court grants the Defendant's Request for Judicial Notice of that order and of the requests for admissions deemed admitted. Those admissions include:

1. That Defendants were not negligent in owning and managing the Subject Property during Plaintiff's tenancy (RFA 1);
2. That Plaintiff has no evidence that Defendants were negligent in owning and managing the Subject Property during Plaintiff's tenancy (RFA 2);
3. That Defendants did not cause injury to Plaintiff during Plaintiff's tenancy (RFA 3); and
4. That Plaintiff has no evidence that Defendants caused injury to Plaintiff during Plaintiff's tenancy (RFA 4).

Tecson Dec., Paragraph 4, Ex. A.

The court agrees that in view of these admissions, Plaintiff will be unable to prevail on the first or second causes of action as a matter of law.

On June 20, 2025, the Court granted Defendants' Motion for Judgment on the pleadings as to Plaintiff's third cause of action for Retaliatory Eviction.

The Defendants' motion for judgment on the pleadings as to Plaintiff LAURA HEARNE's ("Plaintiff") first and second causes of action is **granted without leave to amend**.

Judgment shall be entered in favor of Defendants.

2. 9:00 AM CASE NUMBER: C24-01401
CASE NAME: WILLIAM WU VS. WANAG TAHATAN-BEY
***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT**
FILED BY: WU, WILLIAM H.
TENTATIVE RULING:

Plaintiff William Wu's motion to enforce the settlement agreement is **granted**.

Plaintiff sued Defendants Wang Tahatan-Bey (aka Kevin Paul Woodruff, along with several other aliases) and Tanya Stutson for quiet title and slander of title. Defendants were the previous owners of the property, but Plaintiff alleges that he became the rightful owner when he purchased the property in 2023.

The parties attended a mandatory settlement conference with the Honorable Melissa O'Connell on August 7, 2025. The parties agreed to a settlement and all three individuals signed the handwritten settlement. Plaintiff filed this motion because Defendants have failed to finalize the settlement agreement and release as stated in the handwritten settlement agreement.

A motion to enforce a settlement agreement is permitted under Code of Civil Procedure section 664.6(a), which provides:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code of Civil Procedure §664.6(a).)

“Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.’ [Citation.] A trial court ‘hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment.’ [Citation.] The trial court may not ‘create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.’ [Citation.] Thus, a trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented, in this case in writing, to the material terms of the settlement. [Citation.]” (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732.)

“Once the parties have reached a settlement, however, they ‘may not escape their obligations by refusing to sign a written agreement that conforms to the oral terms.’ [Citation.]” (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360.) “When parties intend that an agreement be binding, the fact that a more formal agreement must be prepared and executed does not alter the validity of the agreement. [Citation.]” (*Blix Street Records, Inc. v. Cassidy* (2010) 191 Cal.App.4th 39, 48.)

Here, Plaintiff has shown that the parties entered into a binding settlement agreement that was handwritten and signed by all parties on August 7, 2025. The agreement was to be formalized in a “further settlement agreement and release.” However, the fact that the parties never formalized their agreement with a second writing does not negate the

original settlement agreement entered on August 7, 2025.

In opposing this motion, Defendants raise several points related to the foreclosure proceeding that occurred before Plaintiff obtained title to the property. Such arguments are not relevant to the issues presented in this motion. The focus of this motion is whether the parties entered into a binding settlement agreement. Defendants do not contest that they signed the settlement agreement. Nor have they shown that the parties did not agree to all material terms in the settlement agreement.

The Court finds that the parties entered into a binding settlement agreement on August 7, 2025. The Court also finds that it is appropriate to enforce this settlement with a judgment in Plaintiff's favor.

The Court will enter judgment in favor a Plaintiff Wu with the terms provided in the settlement agreement and the addition of the legal description of the property as stated in the complaint. (Changes from the settlement agreement are underlined, but they need not be underlined in the judgment.)

The judgment shall be as follows:

The parties are identified as follows:

- (1) Plaintiff Wiliam H. Wu ("Wu")
- (2) Defendant Wang Tahatan-Bey (a.k.a. Kevin Paul Woodruff, a.k.a. Kevin-Paul Woodruff, a.k.a Kevin Woodruff, individually and as trustee of the Numinutitska Penatekawa Tribal Trust, as Trustee of the Cestui Que Trust and as Co-Trust of the Woodruff, Kevin-Paul Trust 98-1428993 ("Tahatan-Bey"))
- (3) Defendant Tanya Stutson, as Co-Trustee of the Woodruff Kevin-Paul Trust 98-1428993 ("Stutson")

Wu, Tahatan-Bey and Stutson agree to the following terms to resolve the lawsuit filed in the superior court of the state of California for the County of Contra Costa, Case No. C24-01401:

- (1) Title to the subject real property located at 2013 Mount Hamilton Drive, Antioch, California (and the legal description identified in paragraph 2 of Wu's verified complaint filed May 28, 2024 and stated below) is hereby quieted in William H. Wu as his ownership in fee simple of the entirety of the subject property as against Tahatan-Bey's and Stutsons' claim of any right, title, estate, lien or interested in the subject real property.

The real property is 2013 Mount Hamilton Drive, Antioch, California and bears Assessor Parcel Number (APN) of 055-020-013, with the legal description:

LOT 13, AS SHOWN ON THE MAP OF SUBDIVISION 7201, FILED JANUARY 11, 1991, IN MAP BOOK 354, PAGE 40, CONTRA COSTA COUNTY RECORDS. EXCEPTING THEREFROM:

ALL OIL, GAS, CASINGHEAD GASOLINES AND OTHER HYDROCARBON AND MINERAL SUBSTANCES BELOW A POINT 500 FEET BELOW THE SURFACE OF SAID LAND TOGETHER WITH THE RIGHT TO TAKE, REMOVE, MINE, PASS THROUGH AND DISPOSE OF ALL OIL, GAS, CASINGHEAD GASOLINE AND OTHER HYDROCARBON AND MINERAL SUBSTANCES, BUT WITHOUT ANY RIGHT WHATSOEVER TO ENTER UPON THE SURFACE OF SAID LAND, AS RESERVED IN THE DEED FROM MARY M. HINES, ET AL., RECORDED 5, 1977, BOOK 8536, PAGE 172, OFFICIAL.

- (2) Wu's ownership interest is established nunc pro tunc as of May 9, 2023.
- (3) Tahatan-Bey and Stutson agree to not file, record, or otherwise seek to establish any lien, encumbrance, or any other document asserting any right, title, estate, lien or interested in the subject real property.
- (4) Plaintiff Wu agrees to dismiss entire action including the slander of title and declaratory relief causes of action as against Tahatan-Bey and Stutson.
- (5) This agreement will be formalized in a further settlement agreement and release.
- (6) The Court will maintain continuing jurisdiction of this action pursuant to California Code of Civil Procedure section 664.6 and a judgment may be entered and recorded reflecting this settlement.

3. 9:00 AM CASE NUMBER: C25-01431
CASE NAME: PATRICK SHANAHAN VS. ZOE HOLDING COMPANY, INC.
HEARING IN RE: APPLICATION FOR EXTENSION OF PRELIMINARY INJUNCTION
FILED BY: SHANAHAN, PATRICK
TENTATIVE RULING:

The Court **continues this hearing to August 21, 2026** at 9:00 a.m. in order to review the late-filed opposition papers and plaintiff's reply. As previously ordered, the injunction remains in effect in the interim.

4. 9:00 AM CASE NUMBER: C25-02403
CASE NAME: TOMAS RAMIREZ-NIEVES VS. WHEELCARE EXPRESS, INC
MOTION TO BE RELIEVED AS COUNSEL AS TO TOMAS RAMIREZ-NIEVES
FILED BY: RAMIREZ-NIEVES, TOMAS
TENTATIVE RULING:

The unopposed motion of **Michael Bral** to be relieved as counsel for Plaintiff **Tomas Ramirez-Nieves** is